

Standard Conditions Governing Multimodal Transport Documents issued in accordance with Multimodal Transportation of Goods Act, 1993
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- 1. Definition :**
 - a. carrier means a person in the business of transporting for hire goods by road, rail, inland waterways or sea.
 - b. consignment means the person named as a consignee in the multimodal transport contract.
 - c. consignment means to person named in the multimodal transport operator for multimodal transportation.
 - d. consignor means the person named in the multimodal transport contract as consignor, by whom or on whose behalf the goods covered by such contract are entrusted to a multimodal transportation.
 - e. delivery means (i) in the case of a negotiable multimodal transport documents delivering of the consignment to or placing the consignment at the disposal of the consignee or any other person entitled to receive it. (ii) in the case of a non negotiable multimodal transport documents, delivering of the consignment to or placing the consignment at the disposal of the consignee or any person authorised by the consignee to accept delivery of the consignment on his behalf.
 - f. endorsement means the signing by the consignee or the endorsee after adding a direction on a negotiable multimodal transport documents to pass to property in the goods mentioned in such documents to a specified person.
 - g. goods includes - (i) containers pallets or similar articles of transport used to consolidate goods and (ii) animals.
 - h. "mode of transport" means carriage of goods by road, rail, inland waterways or sea.
 - i. multimodal transportation means carriage of good by two or more modes of transport from the place of acceptance of the goods in India to a place of delivery of the goods outside India.
 - j. multimodal transport contract means a contract entered into by the consignor and the multimodal transport operator for multimodal transportation.
 - k. multimodal transport operator means a person who - (i) concludes a multimodal transport contract on his own behalf or through another person acting on his behalf, (ii) acts as principal and an agent either of the consignor or of the carrier participating in the multimodal transportation, and who assumes responsibility for the performance of the said contract and (iii) is registered under subsection (3) of section 4 of the Act.
 - l. negotiable multimodal transport documents means a multimodal transport documents which is (i) made out to bearer or (ii) made out to order and is transferable by endorsement, or (iii) made out to bearer and is transferable without endorsement.
 - m. non negotiable multimodal transport documents means a multimodal transport documents which indicates only an named consignee.
 - 2. Applicability :**

The person set out and referred to in this multimodal transport documents shall apply if the transport a described on the face of the document is by two or more modes of transport from the place of acceptance of the goods in India to a place delivery of the goods outside India.
 - 3. Effects of the issuance of the multimodal Transport Documents :**
 - (1) The issuance of the multimodal Transport Documents confers and imposes on all parties having or acquiring hereafter an interest in the right/obligations and defence set out in the conditions mentioned in this documents.
 - (2) By the issuance of the multimodal transport documents, the multimodal transport operator.
 - a.** undertake to perform and / or in his own name to procure performance of the multimodal transport including all services which are necessary to such transport from the time of taking the goods in charge to the time of delivery and accepts responsibility for such services to the extent set out in these conditions.
 - b.** accepts responsibility for the acts and omissions of his agents or servant when such agents or servants are acting within their scope of their employment, as if such acts and omissions were own.
 - c.** accepts responsibility for the acts and on any other person whose services the uses for the performance of the contract evidenced by this multimodal transport documents.
 - d.** undertakes to perform or to procure performance all acts necessary to ensure delivery.
 - e.** ensure liability to the extent set out in these conditions of loss of or damaged to the goods occurring between the time of taking them into his charge and the time of delivery, and undertakes to pay compensation as set out in these conditions in respect of such as or damage.
 - f.** assumes liability to the extent set out in these conditions for delay in delivery of the goods undertakes to pay compensation as set out in that conditions.
 - 4. Negotiability and title to the goods :**

By accepting the multimodal transportation documents the consignor and his transferees agree with the multimodal transport operator that unless it is marked "non negotiable", it shall constitute title to the goods and the holder by endorsement of this multimodal transport documents shall be entitled to receive or to transfer the goods mentioned in this transport documents.
 - 5. Reservation :**

If the multimodal transport documents contains particular concerning the general nature including number, number of packages or pieces, weight or quality of the goods which the multimodal transport operator or a person acting on his behalf knows, or has reasonable grounds to suspects do not accurately represent the goods actually taken in charge, or if he has no reasonable means of checking such particular the multimodal transport operator or a person acting on his behalf shall insert in the multimodal transport documents a reservation specifying these inaccuracies, ground or suspicion or the absence of reasonable means of checking if the multimodal transport operator or a person acting on his behalf fails to note on the multimodal transport documents the apparent conditions of the goods, he is deemed to have noted on the multimodal transport documents that the goods were in apparent good condition.
 - 6. Evidentiary effects of the multimodal Transport Documents :**
 - (1) The multimodal transport documents shall be prima facie evidence of the taking in charge by the multimodal transport operator of the goods as described therein; and
 - (2) proof to the contrary by the multimodal transport operator shall not be admissible if the multimodal transport documents to a third party including a consignee, who has acted in faith in reliance on the description of goods documents.
 - 7. Guarantee by the consignor :**
 - (1) The consignor shall be deemed to have guaranteed to the multimodal transport operator the accuracy at the time the goods were taken in charge by the multimodal transport operator, of particular relating to the general nature of the goods, their marks, number weight and quantity and if applicable to the dangerous character of the goods, as furnished by him or insertion in the multimodal transport documents.
 - (2) The consignor shall indemnify the multimodal transport operator against loss resulting from inaccuracies or inadequacies of the particular. The consignor shall remain liable even if the multimodal transport documents has been transferred by him. The right of the multimodal transport operator to such indemnity shall in no way his liability under the multimodal transport contract to any person other than consignor.
 - 8. Dangerous goods :**
 - (1) The consignors shall mark or label dangerous goods in a suitable manner as "dangerous goods".
 - (2) Where the consignor hands over dangerous goods to the multimodal transport operator or any person acting on his behalf the consignor shall inform him of the dangerous character of the goods and if necessary, the precautions to be taken, if the consignor fails to do so and the multimodal transport operator does not otherwise have knowledge of their dangerous character then.
 - a.** the consignor shall be liable to the multimodal transport operator for all loss resulting from the shipment of such goods, and
 - h.** the goods may at any time be unloaded, destroyed or rendered innocuous, as the circumstances may require, without payment of compensation.
 - (3)** The above provisions may not be invoked by any person if during the multimodal transport the has takes the goods in his charge with knowledge of their dangerous character.
 - (4)** If, in cases where the provisions (2) (b) referred to above do not apply or may not be invoked dangerous goods become an actual danger to life or property, they may be unloaded, destroyed or rendered innocuous, as the circumstances may require without payment of compensation, except where there is an obligation to contribute in general average or where the multimodal transport operator is liable, in accordance with the provisions of relevant conditions.
- 9. Period of responsibility :**
 - (1) The responsibility of the multimodal transport operator for the goods covers the period from the time he takes the goods in his charge to the time of their delivery for the purpose of his responsibility the multimodal transport operator is deemed to be in charge of the goods from the time he has taken over the goods from (i) the consignor or a person acting on his behalf, or (ii) an authority or other third party to whom, pursuant to law or regulations applicable at the place of taking charge the goods must be handed over for transport.
 - (b) until the time he has delivered the goods (i) by handling them over to the consignee; or (ii) by placing them at the disposal of the consignee in accordance with the usage of the particular trade applicable at the place of delivery; or (iii) by handling over the goods to an authority or other third party to whom pursuant to law or regulations, applicable at the place of delivery, the goods must be handed over.
 - (2) Reference to the multimodal transport operator in this regard shall include his servants or agents or any other person of whose services he makes use of for performance of the multimodal transport contract, and reference to the consignor or consignee shall include their servants or agents.
 - 10. Basis of liability :**
 - (1) The multimodal transport operator shall be liable for loss resulting from loss of or damage to the goods; delay of the occurrence which caused such loss, damage or delay in delivery, look place while the goods were in his charge unless the multimodal transport operator proves that he, his servants or agents or any other person whose services he uses for the performance of the contract evidenced by his Multimodal Transport Document look all measures that could reasonably required to avoid the occurrence and its consequences.
 - (2) Where fault or neglect on the part of the multimodal transport operators his servants or agents or any other person whose services he uses for the performance of the contract evidenced by this multimodal transport documents, combines with another cause to produce loss or damage or delay in delivery, the multimodal transport operator shall be liable only to the extent that the loss, damage or delay in delivery which is attributable to such fault or neglect, provided that the multimodal transport operator proves the part of the loss damage in delivery not attributable thereto.
 - (3) Delay in delivery occurs when the goods have not been delivered within the time expressly agreed upon or in the absence of such agreement within reasonable time required by a diligent multimodal transport operator, having regard to the circumstances of the case to effects the delivery of goods.
 - (4) If the goods have not been delivered within ninety consecutive days following the day of delivery expressly agreed upon, the claimed may treat the goods as lost.
 - 11. Liability for lost or damage when the stage of transport where the loss or damages occurred is not known.**
 - (1) When the multimodal transport operators is liable to pay compensation in respect of loss of or damage to, the goods occurring between the time of taking them into his charge and the time of delivery and the stage of transport where the loss or damage occurred is not known.
 - (a) Such compensation shall be calculated by references to the value of such goods at the place and time they are delivered to the consignee or at the place and time when in accordance with the contract of multimodal transport they should have been so delivered.
 - (b) The value of the goods shall be determined according to the current commodity exchange price or, there is not such price, according to the current market price, by reference to the normal value of goods of the same kind quality.
 - (c) However, the multimodal transport operator shall not, in any case be liable for an amount greater than the actual loss to the person entitled to make the claim.
 - (2) Where a multimodal transport operator becomes liable for any loss of, or damage to any consignor before such consignment has been taken in charge by the multimodal transport operator and the stage of transport at which such loss or damage occurred is not known, then the liability of the multimodal transport operator to pay compensation shall not exceed two special drawing rights per kilogram of the gross weight of the consignment lost or damaged or 666 67 Special Drawing Rights per package or unit lost or damages, whichever is higher.
 - (3) Not with standing anything contained above if the multimodal transportation does not according to the multimodal transport contract include carriage of goods by sea or by inland waterways, the liability of the multimodal transport operator shall be limited to an amount not exceeding 8.33 Special Drawing Rights per kilogram of the gross weight of the goods lost or damaged.
 - 12. Liability for lost or damage when the stage of transport where the loss of damage occurred is known:**
 - (1) When the multimodal transport operators is liable to pay compensation in respect of loss of or damage to, the goods occurring between the time of taking them into his charge and the time of delivery and the stage of transport where such loss or damage occurred is known, the liability of the multimodal transport operator in respect of such loss or damage shall be determined by the applicable Indian law if the loss or damage occurs in Indian, or by the provisions of the applicable law of the country where the loss or damage occurred as the case may be where provisions of the Indian law or the applicable law outside India.
 - (a) cannot be departed from by private contract to the detriment of the claimant and
 - (b) would have applicable if the claimed had made a separate and direct contract with the multimodal transport operator in respect of the particular stage of transport when the loss or damage occurred.
 - (2) Without prejudice to the provisions contained in para 3(2) (b) and (c) mentioned this documents when under the provisions of condition (1) mentioned above, the liability of the multimodal transport operator shall be determined by the provisions of the law referred to condition (1) above the liability shall be determined as though the multimodal transport operator was a carrier referred to in such law. However the multimodal transport operator shall not be exonerated from liability where the loss or damage is caused or contributed to by the acts as omissions of the multimodal transport operator on his capacity and not in the performance of the carriage.
 - 13. Defence and limits for the multimodal transport operator and his servants :**
 - (1) The defence and limits of liability provided for in this multimodal transport documents shall apply in action against the multimodal transport operator in respect of loss of or damage to, the goods occurring between the time of delivery and any consequential loss or damage arising from such delay.
 - (2) If any action in respect of loss resulting is brought against the servant or agent of the multimodal transport operator, if such servant or agent proves that he acted within the scope of his employment, or against any other person of whose services he makes use for the performance of the multimodal transport contract, if such other person proves that he acted within the performance of the contract the servant or agent or such other persons shall be entitled to the defence and limits of liability which the multimodal transport operator is entitled to invoke under this multimodal transport documents.
 - (3) Except as provided for liability for delay, as mentioned below the aggregate of the amounts recoverable from the multimodal transport operator and from a servant or agent or any other person of whose services he makes use other the performance of the multimodal transport contract shall not exceed the limits of liability provided for in this multimodal transport documents.
 - 14. Liability for delay :**

The liability of the multimodal transport operator for loss resulting from delay in delivery as per condition 10 above be limited to an agent amount equivalent to the right payable for the goods delayed but not exceeding freight payable under the multimodal transport contract.
 - 15. Loss of the right to limit liability:**
 - (1) The limits of liability established in condition 11, 12 and 14 above shall not apply if it is proved that the loss, damage or delay in delivery resulted from an act or omission of the multimodal transport operator (or his servants or agent or any other person of whose services he makes use for the performance of the multimodal transport contract done with the intent to cause such loss, damage or delay in delivery recklessly and with knowledge that such loss, damage or delay would probably result.
 - (2) Notwithstanding the provisions 13(2) above, if it is proved that the loss damage or delay in delivery resulted from an act or omission of a servant or agent (or any person of whose services the multimodal transport operator makes use for the performance of the multimodal transport contract done with the intent to cause loss, damage or delay in delivery recklessly and with knowledge that such loss, damage or delay would probably result, the servants or agent shall be entitled to the benefit of limitation liability provided for in these conditions.
 - 9. Delivery / non delivery :**
 - (1) If the goods are not taken delivery of the consignee with a reasonable time after the multimodal transport operator has called upon him to take delivery, the multimodal transport shall be at liberty to put the goods in safe custody on behalf of the consignee at the consignee's risk and expenses or to place the goods at the disposal of the consignee in accordance with the multimodal transport contract or with the law, or with the usage of the particular trade applicable at the place of delivery.
 - (2) The multimodal transport operator shall be discharged from his obligation to delivery goods if, where a negotiable multimodal transport documents has been issued in a set of more than one original, he or a person acting on his behalf has in good faith delivered the goods against surrender at one of such originals.
 17. Noticed of loss, damage or delay :
 - (1) Unless noticed of loss or damage, specifying the general nature of such loss or damage is given in writing by the consignee to the multimodal transport operator at the time of taking over the goods such handling over is prima facie evidence of the delivery by multimodal transport operator of the goods as described in the multimodal transport document.
 - (2) Where the loss or damages is not apparent, the provisions of conditions (1) referred to above apply correspondingly if notice in writing is not given within six consecutive days after the days when the goods were handed over to the consignee.
 - (3) If the state of the goods at the time they were handed over the consignee has been the subject of a joint survey or inspection by the parties or their representative at the place of delivery, noticed in writing need not be given of loss or damage ascertained during such survey, or inspection.
 - (4) In the case of any actual or apprehended loss or damage the multimodal transport operator and the consignee shall give all reasonable facilities to each other for inspecting and tallying the goods.
 - (5) If any of the noticed periods provided for in conditions (2) and (4) referred to above terminates on a public holiday at the place of delivery such periods shall be extended upto the next working day.
 - (6) Noticed given to a person acting on behalf of the multimodal transport operator including any person of whose services he makes use at the place of delivery shall be deemed to have given to the multimodal transport operator.
 18. Freight and charges :
 - (1) Freight shall be deemed earned on receipt of goods by multimodal transport operator and shall be paid for, in any event.
 - (2) For the purpose of verifying the freight basis, the multimodal transport operator reserves the right to have the contents of the containers, trailers or similar articles of transport inspected in order to ascertain the weight, measurement, values or nature of the goods.
 - (3) All dues, taxes and charges levied on the good and other expenses in connection therewith, shall be paid by the consignor or the consignee or the holder of MTD or the owner of the goods.
 - 19. Containers etc.**
 - (1) Goods may be stowed by the multimodal transport operator by means of containers, trailers, transportable tanks, flats pallets or similar articles of transport used to consolidate goods and these articles of transport may be stowed under or on deck.
 - (2) If a containers has not been filled packed or slowed by the multimodal transport operator, multimodal transport operator shall not be liable for any loss of expenses incurred by the multimodal transport operator. If such loss, damage or expenses has been caused by -
 - (a) negligent tilling, packing or slowing of the container;
 - (b) the contents being unsuitable for carriage in containers of
 - (c) the unsuitability or defective condition of the container unless the containers has been supplied by the multimodal transport operator and the unsuitable or defective condition would not have been apparent upon reasonable inspection at or prior to the time when the container was filled packed and stowed.
 - (3) The multimodal transport operator does not accept liability for the functioning to refer equipment or trailer supplied by the consignor.
 - (4) If, by order of the authorities of any places, the goods have to be un packed from their containers to be inspected the multimodal transport operator shall be entitled to recover the cost of packing inspection and repacking from the consignor / Consignee.
 - 20. Hindrance etc, affecting performance :**

The multimodal transport operator shall use reasonable endeavours to complete the transport and to deliver the goods at the place designated for delivery.
 - 21. Lien :**

The multimodal transport operator shall have a lien on the goods for any amounts due under this multimodal contract and for the costs of recovering the same and may enforce such lien in any reasonable manner.
 - 22. Limitation of action :**

Any action relating to multimodal transport under these condition shall be time barred if judicial proceeding have not been instituted with a period of nine months from

 - (1) the date of delivery of the goods, or
 - (2) the date when the goods should have been delivered, or
 - (3) The date on and from which the party entitled to receive has the right to treat the goods as lost.
 - 23. Jurisdiction :**

In judicial proceedings relating to the contract for multimodal transport documents under these condition the plaintiff, at his option, may institute an action in a court which according to the law of the country where the court is situated is competent and within the jurisdiction of which is situated one of the following places.

 - (a) the principal place of business or, in the absence thereof, the habitual residence of the defendant or
 - (b) the place where the multimodal transport contract was made provided that the defendant has there a place of business branch or agency at such place, or
 - (c) The place of taking charge of the goods for multimodal transport or the place of delivery thereof; or
 - (d) Any other place specified for that purpose in the multimodal transport contract and evidenced in the multimodal transport document.
 - 24. General average :**

The consignor or consignee, the holder of the multimodal transport documents and the owner of the goods shall indemnify the Multimodal Transport Operator in respect of any claims of the general average nature which may be made on him and shall provide such security as may be required by the Multimodal Transport Operator in this connection.
 - 25. Arbitration :**

The contract evidenced hereby is contained herein shall be governed by and construed according to Indian laws. Any differences of opinion or dispute there under can be settled by arbitration in India or a place mutually agreed with each party appointing an arbitrator.
 - 26. "Carrier Clause"**

When the MTO is named on the face of the MTD and assumes liability for the performance under the MTD for transport to or from the United States, the MTO assumes liability for such performance as a common carrier.
 - 27. "USA Clause Paramount"**
 - (1) If carriage includes carriage to, from or through a port in the United States of America, the MTD shall be subject to the United States carriage of goods by Sea Act of 1936 ("US COGSA"), the terms of which are incorporated herein and shall be paramount throughout carriage by sea and the entire time that the Goods are in the custody of the MTO or his sub-contractor at the sea terminal in the United States or being transported by non-ocean carriers under an MTD covering both water and inland through transportation to or from the United States.
 - (2) The MTD shall not be liable in any capacity whatsoever for loss, damage or delay to the Goods, while the Goods are in the United States away from the sea terminal and are not in the actual custody of the MTO. At these time the MTO acts as agent only to procure carriage by persons (one or more) under the usual terms and conditions of those persons. If for any reason the MTO is denied the right to act as agent only at these times, his liability for loss, damage or delay shall be governed by US COGSA.
 - (3) Is US COGSA applies the liability of the MTD shall not exceed \$500 per package or customary freight unit (in accordance with Section 1204(5) thereof).
 - (4) If carriage includes carriage to, from or through the United States of America, the Consignor or Consignee may refer any claim or dispute to the United State District Court for the Southern District of New York in accordance with the law of the United States of America.